

GCCN Operator Dock Packet (Lean / First Handshake)

STATUS: DRAFT - for Mighty Organix owner + licensed counsel review only.

NOT LEGAL ADVICE. GCCN Legal is not a licensed attorney. Do not treat this packet as a finished contract, legal opinion, or substitute for counsel. Do not claim attorney-client privilege over these drafts.

Market: Gulf Coast Charters Network (GCCN) - Alabama Gulf Coast flagship (asset-light multi-operator marketplace). Sister brand: Gulf Coast Spearfishing (GCS) may be referenced for cross-listing where applicable.

Model cues (ops, not legal conclusions): ~12% network fee / captain keeps ~88%; non-exclusive; Stripe deposit workflow (typically ~30% unless trip addendum says otherwise); start with one signature private trip.

Packet contents (dock signing)

File Purpose

- 1 01-operator-ic-participation-agreement.md One-page Operator / Independent Contractor participation terms
- 2 02-trip-listing-addendum.md Signature trip listing (price, deposit, cancel/weather)
- 3 03-compliance-checklist.md USCG / COI / vessel acknowledgment checklist (not a legal opinion)
- 4 04-do-not-sign-on-first-handshake.md What not to put in front of a captain on day one

Intended use

- 1. Owner + counsel redline before any dock use.
- 2. Fill blanks (legal names, addresses, trip specifics, insurance limits counsel requires).
- 3. Prefer e-sign or wet ink with clear copies retained; never pressure-sign.
- 4. After counsel sign-off, Accounting can align 1099-ready payout hygiene; Marketing must not overclaim (no guaranteed catch, no false scarcity).

Multi-state / clone note

Expanding beyond Alabama coastal waters or cloning to another coastal market needs local counsel (maritime, tourism, tax, entity, employment classification). Do not assume Alabama forms travel unchanged.

Prepared by GCCN Legal (ops templates). Retain licensed counsel before use.

Related file already in folder

GCCN_Captain_Dock_Packet_DRAFT.md - earlier combined draft (Forms A-C + do-not-sign notes). Prefer the numbered 01-04 set for dock printing after counsel merges/redlines; keep the combined file until owner picks a single source of truth.

OPERATOR / INDEPENDENT CONTRACTOR PARTICIPATION AGREEMENT

Gulf Coast Charters Network (GCCN) - One-Page Outline (Dock Version)

DRAFT - FOR OWNER + LICENSED COUNSEL REVIEW ONLY

Not legal advice. Not a final contract. Not an employment agreement.

GCCN Legal is not a licensed attorney. Have counsel confirm independent-contractor classification, maritime, insurance, and tax terms before any signature.

Effective date: _

Marketplace: Gulf Coast Charters Network ("GCCN"), operated by _ [legal entity / dba] ("Network").

Operator: _ [legal name / dba] ("Operator"), vessel _ [name / HIN / documentation or state number].

Primary dock / home waters (ops): Alabama Gulf Coast - _ [marina / city].

Sister brand note (ops only): Operator may also be invited to list eligible trips under Gulf Coast Spearfishing ("GCS") under the same Network fee and non-exclusive terms, if counsel-approved schedules apply.

1. Relationship

Operator participates in GCCN's multi-operator marketplace as an independent contractor, not an employee, partner, joint venturer, or agent of Network for employment purposes. Operator controls its own vessel, crew, safety decisions, and how charter services are performed, subject to law and this Agreement's marketplace rules. Counsel must confirm IC classification language for Alabama (and any other state of operation).

2. Non-exclusive

This Agreement is non-exclusive. Operator may book guests outside GCCN. Network may list other operators. No territory or volume guarantee.

3. Marketplace fee & payouts

For bookings completed through GCCN (or counsel-approved GCS listings), Network's marketplace fee is approximately twelve percent (12%) of the listed trip price paid by the guest (or such other rate stated on a Trip Listing Addendum). Operator keeps the remainder (approximately eighty-eight percent (88%)), subject to refunds, chargebacks, taxes Network is required to collect/remit (if any), and Stripe/payment-processor fees as disclosed. Payouts follow Network's payout schedule after trip completion or as counsel-approved escrow rules provide. Operator is responsible for its own taxes; Network may issue Form 1099 (or successor) as required-Accounting owns 1099 hygiene; counsel/CPA confirm.

4. Bookings, deposits & guest funds

Guests book through Network's systems. Deposits are typically collected via Stripe (or Network's then-current processor). Default deposit percentage is set on each Trip Listing Addendum (ops target often ~30% unless otherwise stated). Operator will honor confirmed bookings and Network's published cancel/weather rules for that listing.

5. Operator duties (ops)

Operator will: (a) maintain all licenses, USCG credentials, and vessel documentation required for the offered trip; (b) maintain insurance meeting Network's then-current COI requirements (see Compliance Checklist); (c) provide accurate listing info (capacity, duration, what's included, meeting point); (d) treat guests professionally and run a premier experience; (e) not make prohibited marketing claims (including guaranteed catch or false scarcity) in listing copy Network publishes; (f) promptly update Network if credentials, insurance, or vessel status change.

6. Network duties (ops)

Network will: (a) display approved listings; (b) process guest payments per published flow; (c) remit Operator's share per payout rules; (d) provide reasonable booking notices and guest contact info needed to run the trip.

7. Safety & authority

Operator (or Operator's master) has final authority on whether to sail for weather/safety. Network's Green-Yellow-Red weather framework (see Addendum) guides guest communications and refunds; it does not override Operator's safety judgment or law.

8. Liability allocation (placeholder - counsel must draft)

[COUNSEL TO DRAFT] mutual allocation of risk, indemnities, guest waivers, limitation of liability, and insurance additional-insured / waiver-of-subrogation requirements. Do not rely on this placeholder in the field.

9. Term & exit

Starts on Effective Date. Either party may end participation with _ days' written notice (counsel to set), provided confirmed bookings are

honored or mutually rebooked/refunded under the Addendum. Network may suspend listings immediately for safety, credential, insurance, fraud, or guest-harm concerns.

10. Entire dock packet

This one-pager, each signed Trip Listing Addendum, and the Compliance Checklist acknowledgment form the lean dock packet. More detailed Master Terms (if any) control if counsel later adopts them and both parties sign.

Signatures

By signing, each party confirms it has had (or waived) opportunity for independent counsel review of this DRAFT once finalized.

Network: _ Date:

Name / title: _

Operator: _ Date:

Name / title: _

Phone / email: _

DRAFT template - retain licensed counsel before use. Not legal advice.

TRIP LISTING ADDENDUM

Signature Private Trip - GCCN (Dock Version)

DRAFT - FOR OWNER + LICENSED COUNSEL REVIEW ONLY

Not legal advice. Attach to the Operator / IC Participation Agreement for one listed trip (or replace with a new addendum when the listing changes). GCCN Legal is not a licensed attorney.

Addendum date: _

Operator: _

Vessel: _

Listing ID / internal code (if any): _

Brand surface: ☐ GCCN only ☐ Also eligible for Gulf Coast Spearfishing (GCS) cross-list (if counsel-approved)

A. Trip summary (signature private charter)

Field Fill in

Trip name / marketing title

Trip type ☐ Private fishing ☐ Yacht / cruise ☐ Spearfishing ☐ Sunset / celebration ☐ Other: _

Home port / meet point

Duration hours (dock to dock / as stated)

Max guests

What's included

What's not included

Season / blackout dates

B. Price & fee

- Listed trip price (guest pays): \$ _ USD

- Network marketplace fee: % (ops default ~12% unless counsel/owner sets otherwise)

- Operator share: remainder after fee, refunds, chargebacks, and disclosed processor costs (~88% at 12% fee)

- Taxes / resort fees: ☐ included in listed price ☐ added at checkout as disclosed: _

C. Deposit & balance (Stripe)

- Deposit due at booking: % of listed price (ops target often ~30%) via Stripe / Network checkout

- Balance due: ☐ days before departure ☐ at check-in ☐ other: _

- Payment method for balance: ☐ Stripe link ☐ Network collects ☐ Operator collects only if counsel-approved process exists

D. Cancellation by guest (ops framework - counsel to harden)

When guest cancels Guest refund of amounts paid*

More than days before trip %

to days before trip %

Fewer than days / no-show % (often 0% of deposit unless required by law/counsel)

*Less non-refundable processor fees if counsel allows disclosure. Counsel to confirm AL consumer/tourism rules and card-network rules.

E. Weather - Green / Yellow / Red (ops communications)

Operator safety judgment always controls whether to leave the dock.

Status Meaning (ops) Guest / money handling (fill with counsel)

Green Expected to run Standard cancel table above

Yellow Marginal; Operator may offer rebook window or partial options Options offered: ☐ full rebook within days ☐ partial credit ☐ other:

Red Network/Operator calls off for unsafe conditions ☐ Full refund of amounts paid for that trip date ☐ Free rebook within days ☐ Guest choice of:

Definitions of Green/Yellow/Red (wind, seas, small-craft, lightning, etc.) for guest messaging should be written by ops + Operator and reviewed by counsel/insurance broker. This table is not a warranty of weather or catch.

F. Operator cancel / no-show

If Operator cancels other than Red weather/safety, guest receives ☐ full refund and/or ☐ Network may rebook another operator;

Operator may owe Network recoverable costs as counsel drafts.

G. Claims & marketing limits

Listing copy will not promise guaranteed catch, illegal takes, or false scarcity. Spearfishing/GCS listings must reflect legal seasons, licensing, and safety rules Operator actually follows.

H. Compliance tether

Operator re-affirms the Compliance Checklist items remain true as of Addendum date. Material change = notify Network before next departure.

Signatures

Network: __ Date:

Operator: __ Date:

DRAFT template - retain licensed counsel before use. Not legal advice. No guaranteed catch.

COMPLIANCE CHECKLIST - Acknowledgment

USCG / COI / Vessel (GCCN Dock Packet)

DRAFT - FOR OWNER + LICENSED COUNSEL + INSURANCE BROKER REVIEW

This is an operational acknowledgment checklist, not a legal opinion, not a USCG inspection, and not an insurance binder.

GCCN Legal is not a licensed attorney. Passing this checklist does not mean Operator is "legally fine." Network staff should verify documents against counsel/broker-approved criteria; when unsure, escalate-do not improvise.

Operator: _

Vessel: _

Checklist date: _

Reviewed by (Network): _

1. Operator / master credentials (verify copies; note expiration)

Item On file? ID / # Expires Notes

USCG credential appropriate to vessel/route/guests (e.g., OUPV / Master) ☐ Yes ☐ No ☐ N/A

Twic / other required ID (if applicable) ☐ Yes ☐ No ☐ N/A

Drug-testing program participation (if required for route/credential) ☐ Yes ☐ No ☐ N/A

State / local charter or business licenses as applicable ☐ Yes ☐ No ☐ Unsure -> counsel

2. Vessel documentation & safety (ops verify; not a survey)

Item On file / sighted? Notes

Documentation or state registration matching vessel ☐

Passenger capacity consistent with listing ☐

Required safety gear claim by Operator (PFDs, fire, comms, etc.) ☐ Operator affirms Network does not certify seaworthiness

Hailing port / marking consistent with docs ☐

3. Certificate of Insurance (COI) - broker-set minimums

Insurance broker must set dollar limits, additional insured wording, and waiver-of-subrogation needs. Do not invent limits on the dock.

Item Status Carrier / policy # Expires

P&I / liability meeting Network's then-current minimums ☐

Network (and required parties) named as additional insured (if broker requires) ☐

Hull / other covers Operator chooses (not Network's duty) ☐ / ☐ N/A

COI copy retained by Network ☐

Broker-required minimums (fill after broker memo): Liability >= \$ _ ; other: _

4. Guest paperwork readiness (ops)

Item Ready?

Counsel-approved guest waiver / assumption-of-risk process for this trip type ☐ Yes ☐ Not yet - do not skip counsel

Emergency contact / headcount process ☐

Spearfishing / GCS extras (licenses, spearing rules brief) if applicable ☐ / ☐ N/A

5. Acknowledgments (plain language)

- Operator acknowledges Network may suspend listings if credentials or insurance lapse, or if a safety/fraud concern arises.

- Operator will notify Network before the next booked departure if any item above changes or expires.

- Operator understands this checklist is for marketplace participation hygiene, not a substitute for Operator's own legal, regulatory, or insurance advice.

- Network reviewer acknowledges they verified copies against the broker/counsel checklist or flagged gaps for owner/counsel-not that they issued a legal clearance.

Operator signature: _ Date: _

Network reviewer: _ Date: _

Gaps / hold listing?: ☐ Clear to list (ops) ☐ Hold - missing: _

DRAFT acknowledgment only - retain counsel and insurance broker. Not a legal opinion.

What NOT to Have Captains Sign on the First Handshake

GCCN Dock Visit - Field Guardrails

DRAFT - FOR OWNER + COUNSEL

Not legal advice. Purpose: keep the first dock visit premier, fair, and light-get a clean participation path for one signature private trip without over-lawyering or creating false comfort.

GCCN Legal is not a licensed attorney. If something below is later approved by counsel for day-one use, counsel's version controls.

Do sign on first handshake (after counsel green-lights the packet)

1. Final counsel-approved Operator / IC Participation Agreement (one-pager).
2. Trip Listing Addendum for the first signature private trip (price, deposit %, cancel/weather).
3. Compliance Checklist acknowledgment (with COI/USCG copies collected-not "approved as legally sufficient" by dock staff).

Do NOT put in front of them on first handshake

Avoid on day one Why (ops risk)

Long "master services" tome (20+ pages) nobody can read at the dock Slows trust; invites unsigned piles; errors

Exclusive territory / non-compete / "you only book with us" Conflicts with non-exclusive marketplace model; counsel-heavy

Employment offer letters, W-4s, or "crew handbook as employees" Undercuts IC posture; classification risk-CPA/counsel only

Personal guarantee of Network debts or unlimited indemnity they didn't negotiate Unfair optics; counsel must draft any indemnity

Blank or open-ended fee schedules ("fee as we decide later") Ambiguity -> disputes; put % on the Addendum

Guest waivers for the captain to invent or copy from a random website Waiver quality is counsel + insurance broker work

Statements that Network "inspected" or "certified" the vessel as seaworthy Network is asset-light marketplace-don't create survey liability

"You're legally fine / USCG approved because we checked the box" Checklist ? legal opinion

Marketing affidavits promising catch rates or scarcity claims Marketing accuracy; no guaranteed catch

Multi-state expansion addenda "just in case" for other coasts Clone markets need local counsel first

IP assignment of the captain's personal brand / social accounts Overreach for first meeting

Confession-of-judgment, onerous arbitration surprise terms without counsel explanation Fairness + enforceability-counsel gates

Anything asking for passwords, Stripe login, or full bank portal access beyond payout onboarding Network actually needs Security / trust

Backdated documents or "sign this later effective last month" Bad hygiene; don't

Soft rules for the dock visit

- Bring one printed packet (or one e-sign envelope), not five versions.
- Let them take counsel time; no pressure-sign.
- Collect COI + credential copies; if expired or missing, hold listing-don't "sign now, fix later" for live guest bookings.
- One signature trip first; add more Trip Listing Addenda later.
- Sister brand Gulf Coast Spearfishing: mention as optional cross-list only if the trip type fits and counsel-approved GCS rules exist-don't force a second brand stack on day one.
- Never send external legal notices or "cease and desist" style letters from this role without explicit owner approval + counsel.

If they ask "is this enough legally?"

Honest answer: These are ops templates. Your lawyer and insurance broker sign off before we rely on them. Network will not tell you that you can skip counsel for entity, insurance, maritime liability, or IC classification.

DRAFT field guide - retain licensed counsel. Not legal advice.